

Clergy Orphan Corporation Act, 1958

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CHAPTER XXII

An Act to change the name of the body corporate named
“ The Governors of the Society for clothing maintain-
ing and educating poor Orphans of Clergymen of the
Established Church in that Part of the United Kingdom
of Great Britain called England until of Age to be put
Apprentice ” to confer powers upon the said Corpora-
tion and for other purposes.

[7th July 1958.]

WHEREAS in the year seventeen hundred and forty-nine a
society was formed for the purpose of rescuing the
younger orphans of clergy from the evils of poverty and
neglected education:

And whereas in the year eighteen hundred and nine the
governors and the president vice-president treasurer and secre-
tary of the said society were incorporated by an Act intituled
“ An Act for establishing and well-governing the Charitable
Institution called ‘ The Society of Stewards and Subscribers for
maintaining and educating poor Orphans of Clergymen until
of Age to be put Apprentice ’; and for incorporating such
Society; and for more effectually enabling them to carry on
their charitable and useful Designs ” with the name of “ The
Governors of the Society for clothing maintaining and educating
poor Orphans of Clergymen of the Established Church in that
Part of the United Kingdom of Great Britain called England
until of Age to be put Apprentice ” (which Act is hereinafter
referred to as “ the Act of 1809 ”):

And whereas the said Corporation is commonly known as
“ the Clergy Orphan Corporation ” and it is expedient to change
the statutory name of the said Corporation:

And whereas since the passing of the Act of 1809 the Church
in Wales has been disestablished but it is expedient nevertheless
that the said Corporation should continue to be empowered to
clothe maintain and educate poor orphans of clergymen of the

Church in Wales as well as poor orphans of clergymen of the Church of England:

And whereas the powers of the said Corporation with respect to the investing of its funds are inadequate for its needs in the circumstances now prevailing and it is expedient that those powers be amended and extended as by this Act provided:

And whereas it is expedient to amend the Act of 1809 in other respects:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1.—(1). This Act may be cited as the Clergy Orphan Corporation Act 1958.

(2) This Act and the Act of 1809 may be cited together as the Clergy Orphan Corporation Acts 1809 and 1958.

Interpretation.

2. In this Act unless the context otherwise requires—

“the Act of 1809” means the Act intituled “An Act for establishing and well-governing the Charitable Institution called ‘The Society of Stewards and Subscribers for maintaining and educating poor Orphans of Clergymen until of Age to be put Apprentice’; and for incorporating such Society; and for more effectually enabling them to carry on their useful and charitable Designs”;

“the committee” means the committee elected in pursuance of the Act of 1809 as amended by this Act for transacting and managing the affairs of the Corporation;

“the Corporation” means the Governors of the Society for clothing maintaining and educating poor orphans of clergymen of the Church of England and of the Church in Wales;

“the general funds of the Corporation” means the funds of the Corporation the income from which is available for the general purposes of the Corporation;

“orphan” means a child whose father is dead or whose father and mother are both dead and includes a child who has been adopted by a clergyman of the Church of England or of the Church in Wales in pursuance of an adoption order made under the Adoption Act 1950 and whose adopter is dead or whose adopter and the spouse of such adopter are both dead;

“the special funds of the Corporation” means the funds

(5) A division required by either of the two last preceding subsections shall be such as to secure that of the two parts one is a part having at the date of the division a value equal to twice the value of the other part.

For the purposes of this subsection the references therein to value shall in relation to moneys be construed as references to their amount.

(6) As soon as may be after the division required by subsection (3) of this section or a division required by subsection (4) thereof has been made investments which were on the division allocated to the smaller part but were not then trustee securities shall be varied into or for trustee securities and moneys which were on the division allocated to the smaller part shall be invested in trustee securities.

(7) Investments of the Corporation may at any time be varied—

- (a) in the case of investments being trustee securities which are or represent investments or moneys allocated to the smaller part into or for other trustee securities;
- (b) in the case of other investments into or for any of the modes or objects of investment specified in subsection (8) of this section which are for the time being approved by the investment committee appointed in pursuance of subsection (10) of this section.

(8) The modes or objects of investment referred to in paragraph (b) of the last preceding subsection are—

- (a) trustee securities;
- (b) public stocks or funds or government securities of any part of the British Commonwealth of Nations or of Her Majesty's dominions or of the territories under Her protection (not being trustee securities);
- (c) such of the following investments as may be recommended to the investment committee as hereinafter in this subsection provided as being readily marketable and forming a good and safe security:—
 - deposit receipts bonds debentures debenture stocks mortgages or securities unsecured loan stocks guaranteed lien preference ordinary deferred or common stocks or shares (such stocks or shares not being subject to any liability for calls or other payments) of any corporation company or body whether municipal railway public utility commercial industrial investment trust mortgage insurance banking or of any other class;
- (d) (i) freehold land in England or leasehold land in England (having not less than sixty years unexpired);
(ii) freehold ground-rents well secured in accordance with the report of a duly qualified valuer;

of the Corporation the income from which is available for special purposes.

3.—(1) As from the passing of this Act the name of the Corporation shall be “The Governors of the Society for clothing maintaining and educating poor orphans of clergymen of the Church of England and of the Church in Wales”. Change of name.

(2) The provisions of Part IV (Change of name) of the Companies Clauses Act 1863 are hereby incorporated with this Act and for the purposes of those provisions the Corporation shall be deemed to be a company.

4. Notwithstanding anything in the Act of 1809 it shall be and shall be deemed always to have been lawful for the Corporation to clothe maintain and educate poor orphans of clergymen of the Church in Wales as well as poor orphans of clergymen of the Church of England. As to powers of Corporation.

5.—(1) Any part of the capital or income of the Corporation which is not required for the time being for the purposes of the Corporation may be invested and may thereafter remain invested until so required. Powers of investment.

(2) Investments held by the Corporation by virtue of the power conferred by the preceding subsection may consist either wholly of investments for the time being authorised by law for the investment of trust funds (in this section referred to as “trustee securities”) or partly of trustee securities and partly of investments made in or for any other of the modes or objects specified in subsection (8) of this section:

Provided that subsections (3) to (7) of this section shall have effect for the purpose of securing so far as may be that the investments so held shall comprise trustee securities the value whereof taken together is not less than one-third of the value of all the investments so held taken together.

(3) The Corporation shall on the earliest date after the passing of this Act on which it is practicable for the Corporation so to do divide into two parts (each of which may consist either of investments wholly or of money wholly or may consist partly of investments and partly of money) all investments and moneys which at that date are in the hands of the Corporation and represent or are such capital or income of the Corporation as is mentioned in subsection (1) of this section.

(4) On each occasion after the making of the division required by the last preceding subsection on which any investments or moneys come into the hands of the Corporation (otherwise than on a variation under subsection (6) or (7) of this section) and represent or are such capital or income of the Corporation as is mentioned in subsection (1) of this section the Corporation shall as soon as may be after the investments or the moneys as the case may be come into their hands divide them into two parts.

Provided that—

(i) none of the funds of the Corporation invested in or for any of the modes or objects specified in paragraphs (b) or (c) of this subsection shall be invested in investments stocks funds or securities which are not quoted on the Stock Exchange London or on the Stock Exchanges in New York or Toronto nor in corporations companies or bodies of which the aggregate nominal amount of the capital quoted on any of those stock exchanges at the date of such investment is less than five hundred thousand pounds or its equivalent at the current rate of exchange except in the case of a rights issue in respect of stock or shares already held by the Corporation;

(ii) as regards any shares having no par value the paid up capital of the corporation company or body concerned shall be deemed to include the capital sum (other than capital surplus) appearing in the published accounts of the corporation company or body concerned in respect of such shares;

(iii) none of the funds of the Corporation invested in or for any of the modes or objects specified in paragraphs (a) (b) or (c) of this subsection shall be invested in any particular investment stock fund or security save on the recommendation of a person carrying on one or more of the following businesses in the city of London namely the business of a banker a merchant banker a finance house an issuing house or a stockbroker and the Corporation shall employ such a person to keep the funds of the Corporation under continuous review.

(9) The Corporation may retain any investment which was held by the Corporation immediately before the passing of this Act or which may at any time thereafter become vested in the Corporation by virtue of any gift or testamentary disposition whenever made though not being investments authorised to be acquired under this Act and may accept and retain or refuse any new shares stock debentures or debenture stock in any company which may be offered to the Corporation in respect of any investment retained as aforesaid.

(10) For the purposes of this section the committee shall appoint and at all times keep in being a sub-committee (to be called "the investment committee") to consist of the treasurer of the Corporation and at least two other members of the committee.

As to general
court and
committee.

6.—(1) A general court of the members of the Corporation shall—

- (a) be composed of the president or in his absence the vice-president or the treasurer or the secretary of the Corporation with any five or more of the other members of the Corporation;
- (b) be holden twice in every year that is to say in the months of May and November in every year and a president vice-president treasurer secretary and committee shall be elected for the ensuing year at the general court holden in the month of May in each and every year.

(2) (a) The committee of the Corporation shall consist of not less than ten nor more than twenty of the governors of the Corporation together with the president vice-president treasurer and secretary of the Corporation.

(b) The governors of the Corporation assembled at a general court of the members of the Corporation or the major part of them so assembled such number of governors so to be assembled being not less than five such governors shall and may delegate such powers and authority to the committee of the Corporation as they shall think necessary.

(c) The governors of the Corporation assembled at a general court of the members of the Corporation or the major part of them so assembled such number of governors so to be assembled being not less than five such governors may order and dispose of the common seal of the Corporation and make ordain and constitute such byelaws constitutions and ordinances as to them or the greatest number of them shall seem necessary or convenient for and in relation to the matters referred to in section II of the Act of 1809:

Provided that no such byelaw constitution or ordinance shall be binding or have any force or effect until the same shall have been agreed and confirmed by the next succeeding general court of the members of the Corporation whether half-yearly or extraordinary.

(3) Section II of the Act of 1809 shall have effect accordingly.

Amendment of
sections VI and
VIII of Act of
1809.

7. Section VI (Death or removal of officers, to appoint others) and section VIII (Vacancies in Committee) of the Act of 1809 shall have effect as if for the word "seven" in each such section there was substituted the word "five".

Auditing of
accounts.

8. The accounts of the Corporation shall be audited by an accountant or a firm of accountants to be appointed by the general court of the members holden in the month of May in each and every year:

Provided that no person or firm shall be qualified to audit the accounts unless he is a member or in the case of a firm unless all

the partners are members of one or more of the following bodies:—

The Institute of Chartered Accountants in England and Wales;

The Society of Incorporated Accountants;

The Institute of Chartered Accountants of Scotland;

The Association of Certified and Corporate Accountants;

The Institute of Chartered Accountants in Ireland;

Any other body of accountants established in the United Kingdom and for the time being recognised by the Board of Trade for the purposes of the provisions of section 161 of the Companies Act 1948 relating to the qualification for appointment as auditor of a company other than an exempt private company.

9. Sections IV (Power to Committee and Treasurer to invest) IX (Appointment of Auditors) and XII (Limitation of Actions, Treble costs) of the Act of 1809 are hereby repealed. Repeals.

10. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Corporation out of the funds of the Corporation. Costs of Act.

Table of Statutes referred to in this Act

Title	Session and chapter
An Act for establishing and well-governing the Charitable Institution called "The Society of Stewards and Subscribers for maintaining and educating poor Orphans of Clergymen until of Age, to be put Apprentice"; and for incorporating such Society; and for more effectually enabling them to carry on their charitable and useful Designs.	49 Geo. 3 c. 18
Companies Clauses Act 1863	26 & 27 Vict. c. 118
Companies Act 1948	11 & 12 Geo. 6 c. 38
Adoption Act 1950	14 Geo. 6 c. 26

PRINTED BY VACHER & SONS LIMITED, FOR
SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 6d. net

PRINTED IN GREAT BRITAIN